

Overview of the Claim

[3] Mrs. O'Brien is 51 years of age and is a lifelong resident of Lively, Ontario. Since 1977 she has been employed by the Northeast Community Care Access Centre, or its predecessors. She is married and has two sons, one of whom is currently living at home and one who is teaching in Dubai. She and her husband also have the care of a teenage nephew who came to live with them after his mother passed away.

[4] On December 4, 2000 while driving to work along highway 17, the vehicle driven by the Defendant pulled into her path resulting in a serious collision. The front of Mrs. O'Brien's vehicle impacted the right side of Mr. Charbonneau's car. She was traveling between 80 and 90 kilometres per hour at the time. The car was written off as a result of the damage sustained in the accident.

[5] Mrs. O'Brien had to be removed from the car using the jaws of life. She was transported to the hospital by ambulance, on a backboard. After testing and observation she was released from the hospital early in the evening on that same day. She sought treatment from her family doctor within the next few days and began physiotherapy treatment. She also received chiropractic treatment for her injuries. She remained off work due to her injuries until April of 2001 when she returned part-time. She started working again full-time in July of 2001 and has not documented any further time lost from work as a result of injuries sustained in the accident.

[6] It was the position of the Plaintiff at trial that as a result of her injuries she continues to suffer constant pain in her lower back and right sacroiliac joint that is made worse with continued sitting, walking or other physical activities. She also complained of ongoing pain in her right ankle. It is her position that these impairments have caused and continue to cause her considerable pain and pain-related fatigue that keeps her from enjoying many activities of daily living.

[7] The Defendant admitted responsibility for the accident and the damages which the Plaintiffs suffered as a result thereof. However, it was the position of the Defendant that Mrs. O'Brien had recovered from the injuries within a year after the accident and that as of the date of trial she was suffering from no symptoms, or if she did suffer from symptoms they were unrelated to the motor vehicle accident.

The Medical Evidence

[8] Two days following the accident, Mrs. O'Brien attended upon her family doctor, Dr. Carscadden. He had been her family doctor at that time for almost three decades. She related the nature of the accident to him and complained of various symptoms which could be loosely termed "whiplash" type of injuries. Over the following months, Dr. Carscadden monitored her progress and the treatment she was receiving from her chiropractor and physiotherapist. He appears to have had little involvement in the active treatment of her injuries. In a series of entries made in his clinical notes and records between June of 2001 and January of 2002 he

indicated, among other things, that Mrs. O'Brien was doing well, was back to work full time and that she could not believe the improvement in her condition. The doctor's note on January 31, 2002 indicates in part that "...everything is fine on physical examination" and that "...since she is only 80-90% better and at a standstill that she would get reassessed again for physio." Thereafter there is no mention of any symptoms related to her injuries until October 12, 2004 when she complained that she had been walking in the bush more than usual and it had made her back worse. At that time, Dr. Carscadden found a little paralumbar spasm, tenderness and slightly limited movement and assessed her as having "recurrent low back pain syndrome". In the course of his testimony at trial, the doctor suggested that he should have used the term "aggravated low back pain syndrome" as it was his understanding that Mrs. O'Brien's low back pain was constant but was aggravated by certain activities. Dr. Carscadden did accept, on cross-examination, that if low back pain was not mentioned in his notes it would be fair to say that it was not a subject of complaint. He last saw Mrs. O'Brien in late 2005 just prior to his retirement. There are no notations of low back pain in his records between October 12, 2004 and his retirement.

[9] On December 7, 2000, the Plaintiff began to see a physiotherapist named Nadia Lapointe (then Nadia Groleau) who she continued to see quite regularly for about two and half years. Ms Lapointe treated her for neck problems, ankle problems and lower back problems – particularly in her right sacroiliac joint. On January 2, 2002 Ms Lapointe authored a discharge report in which she indicated that Mrs. O'Brien had no complaints of neck, chest, arm or knee pain, and the low back, right groin and right ankle pain was much reduced and intermittent. This report also indicated that she was able to return to normal activities of daily living with no restrictions. Under the heading clinical impression, it was stated that "The whiplash associated disorder and soft tissue injuries to the extremities was fully resolved. There is residual intermittent right low back and groin pain from the right hemi-pelvic instability." In Ms Lapointe's testimony she indicated that although Mrs. O'Brien could return to normal activities of daily living this did not mean that she could do so without pain. Mrs. O'Brien attended again for physiotherapy in February 20, 2002 and entered into a treatment regimen to deal with her low back pain and the pelvic floor issues arising from her hysterectomy. She continued with those treatments until April of 2003. In a letter dated May 13, 2003 addressed to counsel for the Plaintiff, Ms Lapointe indicated as follows: "Mrs. O'Brien's most recent reassessment was on February 20, 2003 for pelvic floor rehabilitation following surgery on March 28, 2002. She presented with extreme weakness of the pelvic floor musculature and poor motor control. Her pelvis showed significantly reduced mobility and dysfunction." In a report to Underwriters Adjustment Bureau dated May 16, 2003, Ms Lapointe wrote: "Mrs. O'Brien showed very little improvements with no long-standing change after a total of eight treatments. It was concluded that physiotherapy alone would not change her condition long-term and I am recommending that she be assessed and treated by someone who specializes in this domain. I am recommending that she be seen by an osteopath in Toronto in attempt to correct her pelvic dysfunction and improve pelvic floor strength."

[10] On January 16, 2001 Mrs. O'Brien began seeing her chiropractor Dr. Demencu, complaining of symptoms in her neck, lower back, groin, thigh and ankle. He treated her for

these symptoms through to May of 2001. In a report dated May 10, 2001, Dr. Demencu stated that she continues to have pain in her neck, low back and ankle, but on a diminished basis, and that he anticipates a slow but steady improvement. She did not return to chiropractic treatment until October 19, 2004 when she sought treatment from Dr. Cadotte complaining of right-sided pain and stiffness starting in the right ankle, knee or low back area with sharp pain in the right sacroiliac joint. She has sought treatment every three or four weeks since that time for relief from these symptoms.

[11] Dr. A.D. Graham, a physiatrist in Sudbury, saw Mrs. O'Brien at the request of her family doctor. On March 21, 2001, he issued a report that stated as follows: "The diagnosis in my opinion is right peroneal tendonitis, mechanical low back pain and myofascial strain of the right upper trapezius from a WAD I injury...The prognosis is good for a full recovery and she should be able to resume all her normal activities at home, but she may well be limited in terms of prolonged standing and walking still to some extent and overall should be able to change her position at will to relieve her low back pain."

[12] On March 25, 2002, Mrs. O'Brien underwent a hysterectomy and rectocele repair. Dr. Albert Melanson was the treating gynaecologist. In a report dated October 13, 2005, he stated that she had an uneventful recovery from her surgery and that the medical problems necessitating the surgery were unrelated to the motor vehicle accident.

[13] Dr. D. J. Ogilvie-Harris was called by the Plaintiff as an expert in orthopaedic medicine. He had seen Mrs. O'Brien on May 27, 2003 and again on March 12, 2008 for the purposes of rendering a medicolegal opinion. After his first examination he determined that Mrs. O'Brien had suffered soft tissue damage as a result of the accident involving minor tearing and disruption of the soft tissues and ligaments and also damage to the facet joints and discs. He noted her complaints of pain in the right paralumbar area and sacroiliac joint, going into her right pelvis, groin and anterior thigh. He also noted her complaints of pain and stiffness in her right ankle. He felt he was able to measure a decrease in her right ankle mobility and in her lower back mobility. As her symptoms had persisted for over two years, he felt that they were unlikely to resolve and would present as ongoing problems into the future. Subsequent to his examination of the Plaintiff in March of 2008, he reported similar subjective complaints and the same limitations in mobility. He opined that she has mechanical low back pain and decreased range of movement consistent with facet joint damage. He testified that 10-15% of patients with whiplash injuries will go on to develop long term problems and that in his opinion Mrs. O'Brien fell into that group.

[14] Dr. Hugh Cameron was called by the Defendant as an expert in orthopaedic medicine. He saw Mrs. O'Brien at the request of counsel for the Defendant to provide a medicolegal opinion. He saw the Plaintiff on May 4, 2007 for a period of about twenty minutes. His physical examination took up ten minutes of that time. He testified that if you take any longer to complete the physical examination you don't know what you're doing. He acknowledged her complaints of occasional neck pain, pain in the right side of her low back and pain in the right ankle. His examination failed to reveal any decrease in her range of movement. His opinion was

that she had suffered a simple, uncomplicated strain of the neck and back from which recovery would be expected. He stated that there were essentially no physical findings and no objective corroborating evidence of any significant ongoing orthopaedic pathology. In his view, she was able to do anything which she wished without fear of harm, required no treatment as a result of the injuries sustained in the accident and would not require treatment in the future.

The Non-Medical Evidence

[15] The Plaintiff called several witnesses who gave testimony about changes they perceived in the Plaintiff after the date of the accident.

[16] Diana Price is the older sister of the Plaintiff and considers them to be best friends. They see one another every Wednesday and often speak to one another or visit at other times during the week as well. Each year they go to Toronto for a “power-shopping” trip, usually in November. She described her sister as dependable, creative, hard-working, fun loving and “woodsy”. She said that aside from some problems with asthma, the Plaintiff suffered from no disabilities prior to the accident. She testified that following the accident she noted the Plaintiff to be suffering from discomfort in her legs and lower back. She has noted that she cannot sit for any length of time and that their annual shopping trip has to be broken down into segments as she can no longer maintain the level of activity that she did before. She sees the Plaintiff’s endurance has having been affected and that leads to her frustration and irritability. She said that her sister still tries to do everything she did before the accident, but she just can’t do it and needs more breaks. She said that “she gives all she’s got, she just doesn’t have it to give.”

[17] Gerald Watts is the best friend of Kevin O’Brien and has known Mrs. O’Brien since grade 4. He and his wife get together socially with the Plaintiffs a couple of times per month and have been doing so for some 16 years. They have children about the same age and when the children were younger they would see each other even more often at various sporting events and children’s activities. He testified that before the accident Mrs. O’Brien was very active, outgoing, and happy-go-lucky. Since the accident she has much less stamina, is a little moodier and appears less comfortable. He said that she can’t do the things she used to do and can’t sit still any length of time without getting sore and starting to fidget. Many of his observations come from semi-annual camping trips that they take together in which they head into the backwoods to fish. He has noted that Mrs. O’Brien can no longer carry the canoe or her share of supplies as she used to. She is not able to canoe as much as she once did and seems during these trips to be only half the woman she was before.

[18] Robert Mackavicius is a youth services officer who works with Kevin O’Brien. He has known Connie O’Brien since they were young and has socialized with them every couple of months for the last eighteen years or so. He and his wife also participate in the semi-annual camping trips. He stated that before the accident she did the work of one of the guys, carrying her share of equipment and helping carry the canoe during portages. Since the accident, it has been evident to him that these activities cause her pain and that as a result she carries less, walks

less and can't carry her part of the canoe. He also testified that she is not as vibrant or carefree as she was before the accident.

[19] Shawn O'Brien is the 22 year old son of the Plaintiffs. After attending college he returned home and is currently an apprentice in heating and ventilation. He has been living at home for the past two years or so. He testified that his mother's activities are restricted because of the pain she suffers. He stated that before the accident she was often active in the house after work, cleaning, doing dishes or crafting. Now, he says, she comes home from work and lies down to watch television and often falls asleep by 9:00. He stated as well that his father now has to do most of the grocery shopping as she cannot handle the heavier items. He describes her as stubborn – that she tries to do the same things that she did before the accident but that she gets frustrated when the pain becomes such that she cannot complete her task.

[20] Betty Lance is the Director of Facilities and Records for the Northeast Community Care Access Centre, where Mrs. O'Brien works. She has known Mrs. O'Brien through work for about 27 years and at times has acted as her supervisor. For the years prior to the accident, she described Mrs. O'Brien as having a very high energy level at work. She used terms such as "she whipped around the office", "she was always a go-getter" and that "she never walked anywhere". She also described her as outgoing, social and helpful in the work environment. Following her return to the office after the accident, Mrs. Lance described her as having a much slower pace, of being much more of an introvert, and being unable to accomplish nearly as much as she had prior. She spoke of Mrs. O'Brien being frustrated with her limitations, less patient with co-workers and trainees and uncomfortable with prolonged sitting.

[21] The Plaintiff Kevin O'Brien gave evidence concerning his wife's condition. He testified that prior to the accident she was full of energy and involved in many different activities. Since the accident, he notes that she is dealing with a lot of pain, has a decreased level of energy, and decreased levels of activity. He testified that she has little energy left when she finishes work and during weekdays spends her evenings resting. He stated that she is a little better on weekends but unable to enjoy to the same extent many of the activities they had previously enjoyed together such as biking, walking, camping and dancing. In addition, he testified that he now has had to undertake most of the grocery shopping, heavy housework and yard work.

The Verdict of the Jury

[22] The first question asked of the jury was as follows: "Are you satisfied the accident caused by the Defendant's negligence materially contributed to the final condition of Connie Lyn O'Brien".

[23] In my charge to them, I indicated that answering this question would involve a two step analysis. First, the jury had to determine what Mrs. O'Brien's final condition is, and secondly, it had to determine if the Defendant's negligence materially contributed to this condition.

[24] The jury answered this question "no". Consequently, it must be accepted that the jury found either that Mrs. O'Brien was no longer suffering from any condition, or that she was

suffering from a condition, but that the condition was not materially contributed to by the accident. In addition, in awarding the Plaintiff no damages for loss of future income, it may be argued that the jury found no permanency to the Plaintiff's injuries.

[25] As provided in the case of *Kasap v MacCallum* [2001] O.J. 1719, the verdict of the jury is a factor that the trial judge may consider when determining a Plaintiff's rights in a threshold determination. Specifically, the Court of Appeal stated as follows:

“Nowhere does the legislature say that the Judge is bound to consider the jury verdict much less that the Judge is bound by any implied finding of credibility of the jury. By the same token the legislation does not suggest that a Trial Judge cannot, in the exercise of judicial discretion, consider the verdict of the jury. The legislation is clear: the Judge must decide the threshold motion, and in doing so, the Judge is not bound by the verdict of the jury.”

[26] In coming to my decision I have specifically considered the implied findings of the jury.

The Credibility of the Complainant

[27] The Plaintiff Connie O'Brien testified that she suffers from low back pain, particularly in the area of her right sacroiliac joint. Her evidence is that the pain is constant and worsens throughout the day so that by the time she finishes work she is exhausted and can do little other than rest in the evenings. She also testified that every month or so she will have a flare up of her symptoms that will cause her extreme pain and discomfort and will necessitate additional chiropractic treatment to alleviate. She also complained of pain and stiffness in her right ankle that prevents her from engaging in many physical activities.

[28] The Defendant did an admirable job of challenging Mrs. O'Brien's credibility and certainly there were some problems with her testimony. On many occasions she was defensive and argumentative with counsel during cross-examination. Her unwillingness to accept as accurate the notes and records of her complaints and progress made by her various doctors, physiotherapists and chiropractors made her appear unreasonable. That she attributed the medical problems leading to her hysterectomy as related to the motor vehicle accident notwithstanding all of the medical evidence to the contrary gave her the appearance of blaming the accident for all of her ills. That she characterized her family doctor of some thirty years as a “pill-pusher” did little to enhance her credibility.

[29] However, I must also consider that the evidence she gave with respect to her condition and its effects on her life was corroborated in several significant respects.

[30] For example, each of the lay witnesses gave accounts of their observations of her that included her activities at home, at work and at play. They were all consistent in having observed significant limitations on her activities due to pain and pain related fatigue. In my view, the evidence of these witnesses was not seriously challenged on cross-examination.

[31] With the exception of about 17 months between May 2003 and October 2004, she has been seeking treatment for her injuries in one form or another since the accident. In the time period between the accident and her hysterectomy in March of 2002 there were approximately 75 attendances at the physiotherapist and 38 attendances at the chiropractor for treatment related to her neck, lower back/SI joint and right ankle. After the hysterectomy she continued to seek physiotherapy and was given treatment on about 39 occasions between March 2002 and May 2003. Although treatment by the physiotherapist included treatment for weakness in the pelvic floor which was unrelated to the accident, it also included treatment for pain and stiffness due to pelvic instability that in the view of the physiotherapist was related to the accident. From October of 2004 to October of 2008, Mrs. O'Brien had sought treatment from her chiropractor on a further 103 occasions, primarily for low back/SI joint pain. Her evidence and that of the chiropractor was that treatment is ongoing.

[32] Without exception, the caregivers and doctors reported that Mrs. O'Brien was providing maximum effort, was not prone to exaggerate her symptoms and was putting forth her best efforts to make a full recovery. On many occasions, the care providers were able to make objective findings of restricted ranges of movement or muscle spasm that were consistent with the Plaintiff's complaints. Even Dr. Cameron, the defence expert, found her to be co-operative, factual and straightforward. He did not believe she was being theatrical in any way or was trying to fool him when she reported tenderness on his physical examination.

[33] In the circumstances, and notwithstanding the frailties of her testimony as raised by the Defendant, I am content to accept as accurate the substance of Mrs. O'Brien's testimony.

Adverse Inference for Failure to Call a Witness

[34] Dr. Carscadden retired from his family practice in late 2005. Mrs. O'Brien began seeing Dr. Caesar as her family doctor some six months thereafter. Although Dr. Caesar's clinical notes and records were filed as an exhibit he was not called as a witness.

[35] The Defendant has asked that I draw an adverse inference from the failure to call this witness. The Plaintiff has pointed out that the Defendant was free to call this witness as well and that his refusal to do so should result in an adverse inference being drawn against him.

[36] In my view it would be inappropriate to draw any adverse inference from the failure of either party to call Dr. Caesar. His notes and records are typewritten and fairly clear. They speak for themselves. Over the course of the trial we endured several days of testimony from care providers explaining many pages of their notes and records. I do not see what would be gained by having Dr. Caesar do the same thing. His notes and records disclose that he had not treated Mrs. O'Brien for back related injuries and that she had not complained of low back pain to him. I accept this, just as I accept that from October 2004 to November of 2008 Mrs. O'Brien attended at her chiropractor on 103 occasions for treatment related to her low back pain.

[37] That she did not complain or seek treatment from her family doctor does not necessarily mean that she was not suffering from low back pain.

The Issue of Causation

[38] The Defendant has argued that even if Mrs. O'Brien has met the requirements of section 267.6(5) of the *Insurance Act* she has not established that the motor vehicle accident is a contributing cause to the symptoms from which she continues to suffer. This position is premised primarily on the discharge report of the physiotherapist authored on January 31, 2002 as referenced above and the notes and records of Dr. Carscadden dated between June 2001 and January 2002 as referenced above. It is argued that those records, along with the testimony of the doctor and physiotherapist, indicate that as of January 2002 she had largely recovered from the injuries sustained in the accident and that any problems encountered thereafter would have been the result of some other factor such as pre-existing back/spine problems or post-accident factors unrelated to the motor vehicle accident. The Defendant also points out that the findings of the jury would be consistent with this argument.

[39] In my view the Plaintiff has established on a balance of probabilities that her ongoing problems are the result of injuries sustained in the accident.

[40] Although she suffered an injury to her tailbone in a motor vehicle accident in 1985 it is clear from her medical records that she suffered no symptoms related to that accident for many years prior to 2002.

[41] Although the chiropractor Dr. Demencu interpreted x-rays taken by him as disclosing early degenerative disc disease and a kyphotic spine, the experts who testified did not find anything in the x-rays or x-ray reports that they felt would be contributing factors to her complaints.

[42] Although Mrs. O'Brien's symptoms appear to have escalated following her hysterectomy in March of 2002, the report of her gynaecologist indicates that the surgery proceeded without incident and that she made a full recovery from it. The experts called as witnesses at the trial did not believe that her symptoms would be related to the hysterectomy.

[43] One is left to wonder why an otherwise healthy middle-aged woman would be suffering from low back pain. It seems to me that her involvement in a serious motor vehicle collision such as this provides a ready explanation. Although the notes and records of her care providers indicate that there were times when she did not complain of back problems, I do not accept this as necessarily meaning that her back problems had completely resolved. It may mean that on the day in question her back pain was not as significant a problem as some other ailment for which she presented. It may mean that a certain level of back pain had become the norm for her and did not warrant specific complaint. It may even mean that for a period or periods of time she was relatively free of back discomfort. However, if one accepts that she continues to suffer from

back problems, it is difficult on the evidence to accept that the accident is not a contributing factor to those problems.

The Test Under Section 267.5(5)(b)

[44] The Plaintiff must meet a three part test in order to come within the exception to the general rule immunizing negligent drivers for non-pecuniary losses, namely:

1. That she has sustained a permanent impairment of a bodily function caused by continuing injury which is physical in nature;
2. If the answer to question #1 is yes, that the bodily function which has been permanently impaired an important one;
3. If the answer to question #2 is yes, that the impairment of the important bodily function is serious.

[45] Mrs. O'Brien suffers from mechanical low back pain resulting from soft tissue injuries sustained in the motor vehicle accident. As a result of her low back pain she has difficulty with prolonged standing, sitting, repetitive bending or lifting, twisting or turning or doing any form of impact loading activities. The pain associated with her injuries causes her considerable fatigue, particularly over the course of a working day such that by days end, she has little energy to devote to domestic chores or recreational pursuits.

[46] The Defendant takes the position that Mrs. O'Brien has not established on a balance of probabilities that the injuries she sustained in the accident were permanent. His argument in that regard relies on the notes and records of the physiotherapist and her family doctor which he argues indicate significant if not complete improvement by January of 2002. The Defendant points out that the findings made by the jury are supportive of this position.

[47] The Court of Appeal has indicated in the case of *Brak v Walsh* 90 O.R. (3d) 34 that "...permanent means lasting indefinitely into the future as opposed to for a limited time with a definite end...The requirement of a permanent injury is also met when a limitation in function is unlikely to improve for the indefinite future."

[48] In the case of *Frankfurter v Gibbons* 74 O.R. (3d) 39 (Div. Ct.) it was held that to establish permanence a plaintiff need not prove that the impairment constantly manifests itself. "A continuing impairment, albeit experienced intermittently, can satisfy the plain language of the statute."

[49] On the evidence, I am satisfied that the injuries sustained by Mrs. O'Brien in the accident are permanent. They have not yet resolved today, after some eight years. I accept Dr. O'Gilvie-Harris's evidence that soft tissue injuries which have not resolved for a period of years are likely to continue on an indefinite basis. Indeed, Dr. Cameron did not disagree with this general notion.

[50] With respect to the second element of the three part test, the Defendant conceded that the bodily functions alleged to be affected by the injuries are important and I agree.

[51] Lastly, the Defendant has argued that the impairment of the Plaintiff's important bodily function is not serious. In that regard, it has been pointed out that since her return to work full time there is no evidence that her work performance has been anything but good. It has also been pointed out that she continues to enjoy the same recreational pursuits as she did prior to the accident but on a somewhat reduced scale, and that she continues to contribute to household chores although in a somewhat reduced capacity. It is suggested that whatever impairments are found they are insignificant as they do not cause substantial interference with her ability to perform her daily activities, recreational activities or to continue her regular employment.

[52] The Court of Appeal in *Meyer v Bright* [1993] O.J. No. 2446 held that "...generally speaking, a serious impairment is one which causes substantial interference with the ability of the injured person to perform his or her usual daily activities or to continue his or her regular employment."

[53] In the case of *Brak v Walsh*, supra, it was held that "The requirement that the impairment be 'serious' may be satisfied even although plaintiffs, through determination, resume the activities of employment and the responsibilities of household, but continue to experience pain. In such cases it must also be considered whether the continuing pain seriously affects their enjoyment of life, their ability to socialize with others, have intimate relations, enjoy their children and engage in recreational pursuits."

[54] I am satisfied on a balance of probabilities that the continuing pain suffered by Mrs. O'Brien seriously affects her enjoyment of life. Although she is able to attend work and complete her duties satisfactorily, I accept that by the end of the day her lower back is sore and that she foregoes many household and recreational activities in the evenings in order to recover. I accept that the pain and the risk of exacerbating her back condition has lead her to reduce her participation in such activities as camping, canoeing, portaging, shopping, bicycle riding, gardening, walking, and dancing. I accept that the pain and risk of exacerbating her back condition has resulted in a reallocation of household duties so that she is responsible for lighter work and the heavier work is assumed by her husband.

[55] I recognize that my findings may well be inconsistent with findings made by the jury at trial. That is not to say that the jury was without grounds to make the findings they did. As I indicated earlier in my reasons, the jury had to have found either that the Plaintiff was no longer suffering from any condition or that any condition she was suffering from was unrelated to the accident. No doubt there exists evidence upon which either or both of those findings could be made. In this instance, to the extent that my finding is inconsistent with theirs, I happen to be of the view that the evidence leads to a different conclusion.

Conclusion

[56] I find that the Plaintiffs have met their onus in establishing that the injuries suffered by Mrs. O'Brien fall within the exception contained in section 267.5(5)(b) of the *Insurance Act*.

The Honourable Mr. Justice Robbie D. Gordon

Released: March 13, 2009

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ONTARIO
SUPERIOR COURT OF JUSTICE

B E T W E E N:

CONNIE O'BRIEN and KEVIN O'BRIEN

Plaintiffs

- and -

LAURENT CHARBONNEAU

Defendant

REASONS FOR JUDGMENT

Robbie D. Gordon
Superior Court Justice

Released: March 13, 2009